If an Offeror and an Offeree (defined below) enter into a peer-to-peer transaction through the “Transactions and Escrow” function (“**Peer-to-Peer Agreement”**) on the Orisuun.com platform (Site), these terms (“**Peer-to-Peer Instructions**”) apply. These Peer-to-Peer Instructions govern Peer-to-Peer Agreements.

To the extent permitted by applicable law, we may modify these Peer-to-Peer Instructions without prior notice to you, and any revisions to these Peer-to-Peer Instructions will take effect when posted on the Site unless otherwise stated. The version of these Peer-to-Peer Instructions in effect on the date any Peer-to-Peer Agreement is entered into apply to that contract. Please check the Site often for updates.

These Peer-to-Peer Instructions hereby incorporate by reference the Orisuun Terms of Service (“**Terms of Service**”). Capitalized terms not defined in these Peer-to-Peer Instructions are defined in the Terms of Service, or have the meanings given such terms on the Site. For purposes of these Peer-to-Peer Instructions, the term “**Offeree**” means a User who received an invitation from a contract page on the Site. For purposes of these Peer-to-Peer Instructions, the term “**Offeror**” means a User who initiates a contract invitation.

1. DIGITAL SIGNATURE AND COMMUNICATIONS

By clicking to fund or to accept a Peer-to-Peer Agreement, Offeror and Offeree are deemed to have executed these Peer-to-Peer Instructions electronically, effective on the date Offeree clicks to accept the engagement, pursuant to the federal Electronic Signatures in Global and National Commerce Act, 15 U.S.C. Sec. 7001, *et seq*., as may be amended from time to time (the "**E-Sign Act**"). Doing so constitutes an acknowledgement that Offeror and Offeree agree to conduct the transaction electronically, and are able to electronically receive, download, and print these Peer-to-Peer Instructions.

Offeror and Offeree agree that any written communications required herein may be provided electronically, including by email or support ticket, if applicable. Any communication sent to Orisuun via U.S. mail or similar service will be deemed timely if received by Orisuun by the applicable deadline.

2. ACCEPTANCE OF PEER-TO-PEER INSTRUCTIONS

Once an Offeror and Offeree have agreed to a Peer-to-Peer Agreement, and the Offeror and Offeree have selected “Agree” on the send offer, accept offer, or other relevant pages on the Site that allow the Offeror or Offeree to “Agree,” they agree to accept the Terms of Service (including these Peer-to-Peer Instructions). These Peer-to-Peer Instructions constitute a binding agreement between Offeror, Offeree, and Orisuun (collectively, the “**Parties**”). Offeror and Offeree must execute (by digital signature or by a method mutually agreed upon by both parties), and Orisuun must agree to, any supplemental instruction or addition, deletion or alteration thereto in writing (collectively the “**Supplemental Escrow Instruction**”). Orisuun reserves the right to reject any Supplemental Escrow Instruction, and is deemed to have rejected such Supplemental Escrow Instructions unless explicitly agreed to in writing.

3. DEPOSIT OF FUNDS

By sending a contract offer to Offeree, Offeror agrees to deposit funds for the amount of the full agreement (or first milestone if applicable). Funds deposited by Offeror remain in the dedicated bank account maintained by Orisuun for holding such funds until they are to be released in accordance with these Peer-to-Peer Instructions (“**Escrow Account**” or “**Orisuun Escrow**” or “**Escrow**”). Orisuun Escrow will release funds held in escrow pursuant to Section 4 of these Peer-to-Peer Instructions (Release and Delivery of Amounts in Escrow).

4. RELEASE AND DELIVERY OF AMOUNTS IN ESCROW

Offeror and Offeree irrevocably authorize and instruct Orisuun Escrow to release applicable portions of the Escrow Account (each portion, a "**Release**") to the Offeree or Offeror, as applicable, based on the instructions described in this Section 4 (each such instruction, a "**Release Condition**"), or as otherwise required by applicable law or expressly permitted by the Terms of Service. The amount of each Release will be delivered to the applicable party in accordance with Offeree's or Offeror's instructions, these Peer-to-Peer Instructions, and the other Terms of Service. All funds released pursuant to these Peer-to-Peer Instructions are subject to applicable fees as described in these Peer-to-Peer Instructions and on the Site.

4.1 RELEASE OF FUNDS TO OFFEREE

Offeree and Offeror authorize and instruct Orisuun Escrow to immediately release funds to the Offeree on the occurrence of any of the following Release Conditions, such authorization and instructions are irrevocable except as expressly provided in these Peer-to-Peer Instructions:

1. Offeror affirmatively selects the option to release funds for Peer-to-Peer Agreement to Offeree.
2. Offeror does not take any action for 14 calendar days from the date of Offeree's release request, in which case Offeree and Offeror agree that Orisuun Escrow is authorized and instructed to immediately release to Offeree the amount of the Peer-to-Peer Agreement.
3. Offeror has declined Arbitration or failed to make its Arbitration Payment (defined below) pursuant to the Dispute Assistance Program, and Offeree has agreed to Arbitration and submitted its Arbitration Payment.
4. Offeror has failed to respond timely to a Notice of Dispute (defined below) or otherwise failed to comply with the Dispute Assistance Program, as required by the Escrow Disputes Team.
5. Submittal of a final award of an arbitrator appointed pursuant to the Dispute Assistance Program in favor of Offeree or to the extent the award is in favor of Offeree.
6. Issuance of an order by a court, arbitrator, or other judicial body of apparent competent jurisdiction in favor of Offeree, in whole or in part, to the extent required by the order.
7. A condition to release funds to Offeree described elsewhere in these Peer-to-Peer Instructions applies.

4.2 RELEASE OF FUNDS TO OFFEROR

Offeree and Offeror authorize and instruct Orisuun Escrow to immediately release funds to the Offeror on the occurrence of any of the following Release Conditions, such authorization and instructions are irrevocable except as expressly provided in these Peer-to-Peer Instructions:

1. Offeree cancels the Peer-to-Peer Agreement or accepts Offeror's request to cancel the Peer-to-Peer Agreement (as described in Section 4.4), and funds for the Peer-to-Peer Agreement are held in Escrow.
2. Offeror and Offeree agree to close the Peer-to-Peer Agreement without release of funds to the Offeree.
3. Offeree has declined Arbitration or failed to make its Arbitration Payment pursuant to the Dispute Assistance Program.
4. Offeree has failed to respond timely to a request for a refund submitted through the platform, Notice of Dispute, or otherwise failed to comply with the Dispute Assistance Program, as required by the Escrow Disputes Team.
5. Submittal of a final award of an arbitrator appointed pursuant to the Dispute Assistance Program in favor of Offeror or to the extent the award is in favor of Offeror.

6. Issuance of an order of a court, arbitrator, or other judicial body of apparent competent jurisdiction in favor of Offeror, in whole or in part, to the extent required by the order.

7. A condition to release funds to Offeror described elsewhere in these Peer-to-Peer Instructions applies.

4.3 DORMANT ENGAGEMENTS

To be fair to Offerors and Offerees, Orisuun has a procedure for Peer-to-Peer Agreements that appear to be Dormant Engagements (as defined below). For purposes of determining dormant status, "**activity**" means a change to the Peer-to-Peer Agreement, Escrow Funding, Escrow Release, Escrow Refunds, Funding requests, Release requests, requests to close the Peer-to-Peer Agreement, or actions under the Dispute Assistance Program.

A "Dormant Engagement" is a Peer-to-Peer Agreement that has a balance but has had no activity for 180 consecutive calendar days after the last activity date contained in the Peer-to-Peeer Agreement terms on the Site ("**Dormant Date**"). Dormant Engagements are subject to the following rules:

1. Orisuun will notify Offeror when the Peer-to-Peer Agreement becomes Dormant.

2. If the Offeror does not take any action within 7 calendar days after the Dormant Date and notification, Orisuun will notify Offeree that the Peer-to-Peer Agreement is Dormant ("**Offeree Notice of Dormant Engagement**").

3. If Offeree submits a release request within 7 calendar days after the Offeree Notice of Dormant Engagement and Offeror does not take any action for 14 calendar days from the date of the Release request, Offeree and Offeror authorize and irrevocably instruct Orisuun Escrow to immediately release to Offeree the amount related to the Peer-to-Peer Agreement.

4. If neither Offeree nor Offeror take any action for 7 calendar days after the Offeree Notice of Dormant Engagement, Offeree and Offeror authorize and irrevocably instruct Orisuun Escrow to immediately release escrow funds to the Offeror.

4.4 REFUNDS AND CANCELLATIONS

Offeror and Offeree are encouraged to come to a mutual agreement if refunds or cancellations are necessary. If there are no funds in Escrow, Offeror and Offeree have the ability to cancel the Peer-to-Peer Agreement by clicking to close the Peer-to-Peer Agreement. If funds are held in Escrow, refunds and cancellations must be initiated by Offeror or Offeree by following the steps in this Section.

4.4.1 REFUNDS AND CANCELLATIONS BY OFFEREE

If Offeree wants to cancel a Peer-to-Peer Agreement with funds held in Orisuun Escrow, Offeree must select "End Contract" on the Orisuun platform. When Offeree and Offeror end the Peer-to-Peer Agreement on the Orisuun platform, Offeree and Offeror agree that Orisuun Escrow is authorized and irrevocably instructed to immediately release to the Offeror all funds held in Escrow on the Peer-to-Peer Agreement at that time.

4.4.2 CANCELLATIONS BY OFFEROR

If Offeror wants to cancel a Peer-to-Peer Agreement with funds held in Escrow, Offeror must select "End Contract" on the Orisuun platform. Offeree must select the option to either approve or dispute Offeror's cancellation within 21 calendar days. If Offeree approves the cancellation, Offeree and Offeror agree that Orisuun Escrow is authorized and irrevocably instructed to immediately release to the Offeror all funds held in Escrow on the Peer-to-Peer Agreement at that time.

If Offeree takes no action within 21 calendar days from the date notification of the cancellation is sent to Offeree by Orisuun, Offeree and Offeror agree that Orisuun Escrow is authorized and irrevocably instructed to immediately release to the Offeror all funds held in Escrow on the Peer-to-Peer Agreement at that time. If Offeree disputes the cancellation, Offeree and Offeror will be offered Orisuun Dispute Assistance (as described in Section 6).

4.5 VIOLATION OF ORISUUN TERMS OF SERVICE OR LAW

Offeree and Offeror acknowledge and agree that if, in Orisuun Escrow's sole discretion, Orisuun Escrow believes that fraud, illegal activity, or a violation of the Terms of Service has been committed or is being committed or attempted, then Offeror and Offeree irrevocably authorize and instruct Orisuun Escrow to take such actions as deemed appropriate, in Orisuun Escrow's sole discretion and in accordance with applicable law, in order to prevent or remedy such acts, including without limitation, to return the funds associated with such acts to their source of payment. This Section 4.5 allows Orisuun Escrow—as permitted by law but otherwise in its sole discretion—to return funds to Offeror's payment method, continue to hold funds in Escrow, release funds to the Offeree, or to turn funds over to third parties such as law enforcement.

5. INSTRUCTIONS IRREVOCABLE

Offeror and Offeree are deemed to and hereby agree that the instruction to Orisuun Escrow and its wholly owned subsidiaries to release funds is irrevocable, except as explicitly provided in these Peer-to-Peer Instructions. Without limiting the foregoing, Offeror's instruction to Orisuun Escrow and its wholly owned subsidiaries to release payment to Offeree is irrevocable. Such instruction is Offeror's authorization to transfer funds to the Offeree from the Offeror or authorization to charge Offeror's payment method.

Such instruction is also Offeror's representation that Offeror has received, inspected, and accepted the subject work or expense. Offeror acknowledges and agrees that upon receipt of Offeror's instruction to release payment to the Offeree, Orisuun Escrow will transfer funds to the Offeree and that Orisuun, Orisuun Escrow, and other affiliates have no responsibility to and may not be able to recover such funds. Therefore, and in consideration of the services described in these Peer-to-Peer Instructions and the Terms of Service, Offeror agrees that once Orisuun Escrow or its subsidiaries or affiliates have charged Offeror's payment method, the charge is non-refundable.

6. DISPUTE ASSISTANCE PROGRAM

If Offeror and Offeree fail to come to a mutual resolution by way of the Refund and Cancellation process as stated in Section 4.4, Orisuun provides the dispute assistance program administered by Orisuun and described in this Section 6 (the "**Dispute Assistance Program**") as a mechanism to resolve the dispute. If the funds in dispute are held in Escrow, the Dispute Assistance Program will proceed as described in Section 6.1.

The Dispute Assistance Program is not available for disputes filed or initiated past the Dispute Assistance deadlines, as set forth in Sections 6.1. The Dispute Assistance Program is offered as a form of non-binding assistance to facilitate communication and potential resolution of disputes between Offerors and Offerees. The Dispute Assistance Program as administered by Orisuun in this Section 6 does not evaluate the quality or functionality of work and cannot render binding judgment or determination as to the parties' respective rights to the disputed funds.

6.1 DISPUTE OF FUNDS IN ESCROW

This Section applies to disputes over funds that are held in Escrow as of the date the dispute is filed ("**Escrow Dispute**"). The scope of the Escrow Dispute may cover the entirety of the Peer-to-Peer Agreement. In the event of an Escrow Dispute, funds in Escrow will remain in Escrow while the Dispute

Assistance Program or Arbitration, as applicable, is being administered. The Dispute Assistance Program for an Escrow Dispute will be administered as set forth below:

1. **Escrow Dispute Assistance Deadline**: Escrow Disputes must be initiated before the funds in Escrow have been released in order to be eligible for the Dispute Assistance Program under this Section.
3. **Initiating A Dispute:** Offerors have the option to request an Escrow refund. In turn, Offerees may initiate an Escrow Dispute when an Offeror fails to release a payment, requests an escrow refund, or ends the project with an escrow balance, despite any purported delivery of work. **Notice of Escrow Dispute:** Once a dispute has been filed, Offeror will be notified of the Escrow Dispute on the platform ("**Notice of Escrow Dispute").** The Notice of Escrow Dispute will request information and supporting documentation from Offeror.
4. **Lack of Participation:** Offeror must respond to the Notice of Escrow Dispute within 10 calendar days. If Offeror does not timely respond to the Notice of Escrow Dispute, Offeror and Offeree agree that the lack of timely response acts as an irrevocable authorization and instruction to Orisuun Escrow to release the funds in Escrow from Offeror to Offeree.
5. **Non-Binding Assistance:** After Offeror or Offeree responds to the Notice of Escrow Dispute, trained members of Orisuun's team ("**the Escrow Disputes Team**") will review the documentation submitted and known information available on the Site that pertains to the dispute. The Escrow Disputes Team will facilitate communication between the parties and help assess whether mutual resolution is possible. The Escrow Disputes Team does not evaluate the quality or functionality of work and cannot render binding judgment or determination as to the parties' respective rights to the disputed funds.
6. **Resolution of Escrow Dispute:** If the Escrow Disputes Team is able to facilitate a resolution between Offeror and Offeree that both Offeror and Offeree agree to in writing, Offeror and Offeree agree that Orisuun Escrow is authorized and irrevocably instructed to immediately release Orisuun Escrow funds in accordance with the agreed-upon resolution. This will result in a closure of the Escrow dispute ticket.
7. **No Resolution:** If no resolution of the Escrow dispute has been reached within 21 calendar days of the Notice of Escrow Dispute, or if the Escrow Disputes Team determines in its sole discretion that no resolution between the parties is possible through the Dispute Assistance Program, the Escrow Disputes Team will issue a "**Notice of Non-Resolution**" and the Escrow dispute will be referred to an arbitrator of Orisuun's choosing ("**Arbitration**"), as set forth in Section 7 below.

7. ARBITRATION

After a "**Notice of Non-Resolution**" is issued from the Orisuun Dispute Assistance Program, Offeree and Offeror each have the right to demand Arbitration of a Peer-to-Peer Agreement. The demand for Arbitration must be communicated to the Escrow Disputes Team at least 7 calendar days before the Dormant Date. Failure to notify Orisuun of Arbitration before the Dormant Date will result in engagement of the Dormant Engagement protocol, which will not be reversed. Furthermore, failure to notify Orisuun of the Arbitration results within 180 days of giving notice of arbitration will result in engagement of the Dormant Engagement protocol, which will not be reversed.

Any Arbitration under this Section 7 will be conducted by a neutral third-party Arbitration service (the **"Arbitration Service Provider"**), to be chosen by Orisuun. All arbitration fees, costs, and associated financial requirements will be the sole responsibility of the Offeror and the Offeree ("**the Dispute Parties**"). The Dispute Parties hereby hold Orisuun, its parent companies, subsidiaries, affiliates, employees, shareholders, debtholders, and owners, indemnified in all respects to Arbitration and/or any related court proceedings. Arbitration fees will be split evenly between the Dispute Parties – each party making timely and equal payments as required by the Arbitration process ("**Arbitration Payment(s)**").

8. SERVICE FEES FOR ESCROW FUNDS RELEASED FOLLOWING DISPUTE ASSISTANCE

All Escrow funds released under the Dispute Assistance Program are subject to the normal Service Fees associated with Escrow accounts, as detailed in the Terms of Service, on the Site, and these Peer-to-Peer Instructions.

9. NOTICES

All notices to a User required by these Peer-to-Peer Instructions will be made via email sent by Orisuun to the User's registered email address. Users are solely responsible for maintaining a current, active email address registered with Orisuun, for checking their registered email address and for responding to notices sent by Orisuun to the User's registered email address.

10. COOPERATION WITH THE DISPUTE ASSISTANCE PROGRAM

All claims, disputes or other disagreements between you and another User that are covered by the Dispute Assistance Program must be resolved in accordance with the terms in the Dispute Assistance Program. All claims filed or brought contrary to the Dispute Assistance Program will be considered improperly filed, unless otherwise required by law, and Orisuun will have the right to take any other action, including suspension or termination of your Orisuun account, which may impact your ability to withdraw funds, and any other legal action as Orisuun deems appropriate in its sole discretion.

11. ABUSE

Orisuun, in its sole discretion, reserves the right to suspend or terminate your Orisuun account immediately upon giving notice to you if Orisuun believes you may be abusing the Dispute Assistance Program or as otherwise permitted by the Terms of Service, which may impact your ability to withdraw funds. However, any disputes for any Peer-to-Peer Agreements that existed prior to termination will be subject to the Terms of Service.

12. NO RESPONSIBILITY FOR SERVICES OR PAYMENTS

Orisuun and affiliates merely provide a platform for Internet payment services. Orisuun and affiliates do not have any responsibility or control over the Offeree's services or products that Offeror purchases. Nothing in this Agreement deems or will be interpreted to deem Orisuun or any affiliate as Offeror's or Offeree's agent with respect to any Offeree services or products, or expand or modify any warranty, liability or indemnity stated in the Terms of Service. For example, Orisuun does not guarantee the performance, functionality, quality, or timeliness of Offeree services or products or that an Offeror can or will make payments.

13. Indemnification of Orisuun

Offeror and Offeree, jointly and severally, shall and do indemnify and hold harmless Orisuun its parent companies, subsidiaries, affiliates, employees, shareholders, debtholders, and owners, with regard to all matters to the Peer-to-Peer Agreement, any dispute, any payments, and any Arbitration and/or legal proceedings.

Offeror and Offeree agree that they use the Orisuun platform at their own risk, and that as a matter of fact and law, they have no recourse, criminal, civil (including those based in tort, contract, or general common law) or otherwise to pursue against Orisuun.

13. Governing Law

The validity, interpretation, construction and performance of these Peer-to-Peer Instructions shall be governed by the laws of the United States, where applicable, and otherwise by the laws of the State of New York, without regard to its principles of conflicts of laws. Any dispute arising out of these Peer-to-Peer Instructions shall be heard first in Arbitration as described above and then in a court of competent jurisdiction over cases and controversies arising in New York, New York.